

Ritual Fitness Hawaii

Website, custom booking system, hosting, and domain. Paying the deposit on this page is Ashley Burnett's electronic signature.

Online agreement & deposit payment: lukaah.com/ritual-fitness-agreement.html

Project \$2,000	Due now to start \$1,000 deposit
Due at acceptance, before launch \$1,000 balance	Year 1 host + domain Included

1. Parties

This Website Design, Development & Hosting Agreement (the "Agreement") is entered into as of the date the Deposit is paid.

Contractor: Lukaah, a sole proprietor doing business as Lukaah at lukaah.com ("Contractor"). Notices: the contact published on lukaah.com.

Client: Ashley Burnett, owner of Ritual Fitness Hawaii, in connection with ritualfitnesshi.com, with studio operations on the North Shore of O'ahu, Hawai'i, including 58-045 Kapuai Place ("Client").

Ashley Burnett is the only person who can approve work, request a refund, accept the Website, or authorize launch. Instructions from anyone else are not binding unless she confirms them in writing (email is enough).

2. What \$2,000 buys

For Two Thousand Dollars (\$2,000.00) USD, Contractor will design and build the Website at ritualfitnesshi.com, including the custom studio booking system in Section 4, revise that work during the Build Phase until Ashley Burnett accepts it as satisfactory *within the Scope below*, launch only after the Balance clears, host the site and keep the domain registered for the first twelve (12) months after launch, and keep the source in a private GitHub repository available to Client on request after the Balance clears.

Contractor is an independent contractor, not an employee or partner of Client.

Pages in Scope

These pages, and only these pages, are in the Project Fee. This list is locked when Client agrees. A new page after that is a Major Edit under Section 7.

- Home
- About / Meet Ashley
- Classes / Services
- Schedule (the booking system)
- Pricing / Packages / Intro offers
- FAQ & Studio Policies
- Contact

Also included

- Mobile-responsive layout
- The custom booking system in Section 4
- Contact path and social links Client provides
- Photo placement from Client-supplied images
- Basic SEO titles and meta descriptions for the pages above
- SSL and connection of ritualfitnesshi.com
- Staging preview before launch
- First year of hosting, domain registration/renewal, and backend upkeep

Not included unless added in writing

- Original photography, video, or long-form copywriting
- Logo or full brand-identity design
- Paid ads, email-marketing campaigns, or social management
- Native iOS or Android apps
- SMS, retail/POS, payroll, insurance billing, multi-location
- Import of historical Mindbody (or other) class and client data
- Third-party subscriptions billed to Client (Stripe fees, email delivery overages, SMS)

3. Definitions

Website — ritualfitnesshi.com and any staging URL used for review.

Scope — the pages and booking features listed in this Agreement. Anything not listed is outside Scope.

Build Phase — from Deposit clearance until written Acceptance.

Acceptance — Ashley Burnett's written confirmation (email is enough) that the Website as then previewed is satisfactory and ready to go live.

Launch — publishing the accepted Website to ritualfitnesshi.com.

Launch Date — the date it first goes live under this Agreement.

Deposit — \$1,000.00 (50%).

Balance — \$1,000.00 (50%).

Project Fee — \$2,000.00, including first-year hosting and domain.

Repository — the private GitHub repo that stores the full Website source.

Annual Fee — the yearly fee after year one for hosting, domain, and backend. Starts at \$100.00 and may change under Section 8.

Writing — email, text, or other durable electronic message.

4. Custom booking system

Contractor will build a custom class-booking system for Ritual Fitness Hawaii as part of the Project Fee. This replaces embedding a third-party scheduler such as Mindbody. The system in Scope is the following, and only the following:

- Public class schedule on the site
- Client accounts (sign up / log in)
- Book a seat and cancel a booking, subject to rules Client configures
- Class capacity so a full class cannot be overbooked
- Products Client can sell: drop-in, packages/class packs, and an intro offer
- Card payments through a processor Client owns and connects (typically Stripe). Contractor does not take possession of class revenue
- Late-cancel / no-show rules Client configures (for example a 23-hour window)
- Admin tools for Client to create classes, assign instructors, set capacity, and see who is booked
- Email confirmation when a client books or cancels

Not in the booking build unless added in writing: waitlists, gift cards, memberships with freeze/hold logic, recurring membership billing beyond simple pack purchase, instructor payroll, SMS reminders, video streaming, or moving years of old Mindbody history into the new system.

Client will open and own the payment-processor account, complete identity verification, and accept that processor's fees and payouts. Contractor wires the site to that account. Chargebacks and class-policy disputes are Client's.

If a payment processor or email vendor changes its rules after launch, updating the integration is a Major Edit unless it is a simple settings change Contractor can do as a Minor Edit.

5. Money

5.1 When it is due

- Deposit — \$1,000.00 due on this page. Work does not start until it clears.
- Balance — \$1,000.00 due on Acceptance, in full, before Launch. The site does not go live, the live domain is not pointed, and Repository access is not granted until the Balance clears.

Year-one hosting and domain are inside the \$2,000. No separate \$100 at launch.

5.2 Deposit refund

If Ashley Burnett is not satisfied during the Build Phase, she may end the project in writing before Acceptance and before Launch. Contractor will then refund the Deposit, minus documented out-of-pocket amounts Contractor actually paid to third parties for this project (examples: domain, hosting setup, paid software, stock assets, payment-platform fees). Contractor's own time is not deducted.

On request, Contractor will give Client copies of those receipts. The remaining Deposit is returned within fourteen (14) days by the original method or another agreed method.

After that refund, this Agreement ends. Client has no license to use the work, mockups, code, or Repository. Any Repository access is revoked. If Client already published Contractor work, Client takes it down.

No refund after Acceptance, after the Balance is paid, or after Launch. The refund is for dissatisfaction with work inside Scope. It is not a free cancel because Client changed direction, sat on content, or asked for features this page does not list.

5.3 Annual Fee after year one

After the included first year, Client pays the Annual Fee each anniversary of the Launch Date. It starts at \$100.00 per year and covers hosting, ritualfitnesshi.com, and backend upkeep.

Contractor may raise the Annual Fee if needed to keep the site functioning. Any increase requires written notice at least sixty (60) days before that payment is due. If Client does not want the new amount, Client non-renews and takes the domain and source under Section 8.

5.4 Late

Amounts more than ten (10) days past due accrue the lesser of 1.5% per month or the legal maximum. After Launch, Contractor may suspend the live site for an Annual Fee more than fifteen (15) days past due, after written notice, and restore it when the account is current.

6. Build Phase — until it is right

During the Build Phase, Contractor keeps working until Ashley Burnett confirms in writing that the site is satisfactory in her judgment and ready to go live. That standard applies to the look, content placement, and booking features listed in this Agreement. It does not require new pages or new booking features that are not listed.

Contractor provides a staging preview. Ashley sends specific written feedback. Contractor implements in-Scope feedback and repeats until Acceptance.

If Ashley does not respond to a preview within ten (10) business days, Contractor may send a reminder. If there is still no response five (5) business days after the reminder, the then-current preview is deemed Accepted so the Balance can be invoiced and the site can launch. Post-launch edit allowances still apply.

In-Scope polish during the Build Phase is unlimited: layout, type, color, swapping Client copy and photos on the listed pages, fixing bugs, and reasonable reordering of existing sections.

Out of Scope even during the Build Phase, and priced in writing first: a new page, a booking feature not listed in Section 4, a full rebrand after a direction was already implemented at Client's request, or original photo/video/copy.

7. Edits after launch

After Launch, unpaid "until it is perfect" ends. Unused allowances do not roll over.

Minor Edit — 3 per calendar month

A Minor Edit is a small change on an existing page that does not add a page, add a feature, or rebuild a layout. Contractor reasonably expects to finish it in about thirty (30) minutes or less, including publish.

Examples: typo; phone, address, price, class time, instructor name; rewrite a headline or short paragraph; swap one image for another Client image of similar crop; update hours or a social URL; a small color/spacing tweak; fix a broken link or display glitch.

Not a Minor Edit: new page; new section that needs layout; page redesign; form or booking-logic change; new gallery or integration; graphics from scratch; batch image replacement across the site; anything that is a Major Edit.

Three Minor Edits per calendar month after Launch. Unused expire at month-end. Several tiny fixes in one request on the same page, doable in one short session, may count as one. Target turnaround: five (5) business days from a

complete request.

Major Edit / big edit — same thing

One included per twelve-month period starting on the Launch Date. Each one after that is \$100.00. Unused yearly Major Edits expire.

Examples of one “thing”: new section that needs layout; rebuild a page; a new page; change form or booking behavior; add a widget; multi-image gallery work; redesign a core page or refresh brand across pages; a booking feature that Section 4 does not list; anything over about thirty (30) minutes.

Several items in one ask are several Major Edits unless Contractor packages a quote. Work starts only after Client approves the count and price. The Parties confirm in writing when the year’s included Major Edit is being used.

Contractor classifies each request as Minor or Major. If Client disagrees, work on that request pauses until they agree in writing.

For thirty (30) days after Launch, Contractor repairs defects that are Contractor’s error in the accepted Scope, at no charge. A defect is not a new preference, new copy, new photo, or new feature.

8. Hosting, domain, backend, GitHub

During the included first year, and each year the Annual Fee is paid, Contractor will host the site, register and renew ritualfitnesshi.com, keep standard DNS and SSL in place, keep the backend in commercially reasonable working order, take backups at least monthly, apply routine updates Contractor judges necessary, and keep the full source in a private GitHub repository.

Not covered: email inboxes; Client’s Stripe or other vendor bills; the edit work in Section 7; a formal uptime SLA; rebuilds after Client or a guest breaks the live site.

After the Balance clears, Client may request GitHub access at any time. Contractor will grant it (typically as a collaborator) within a reasonable period. Access is on request — Contractor does not have to send an invite until Client asks. Production deploys stay under Contractor while Contractor hosts. If Client (or someone Client invites) pushes a change that breaks the live site, repair is a Major Edit unless Contractor caused the break. Refund under Section 5.2 means no repo access.

Client is the beneficial owner of ritualfitnesshi.com even if Contractor is the registrar billing or technical contact. Contractor will not keep the domain as leverage. When invoices are current, and in any case within thirty (30) days after a clean termination or non-renewal, Contractor will start a domain transfer to an account Client names and will export the site files or leave Repository access in place.

If the Annual Fee lapses, Contractor may take the site offline after the notice in Section 5.4. Unpaid invoices can delay a transfer until they are current.

9. Client provides

- Logo, photos, bio, class copy, prices, policies, parking notes, FAQ answers
- A warranty that Client owns or has a license to every asset Client sends
- A payment-processor account (Stripe or equivalent) in Client’s name
- Decisions through Ashley Burnett, on time

If Client is more than ten (10) business days late with content or a decision that blocks progress, Contractor may pause. A pause is not a Contractor delay and does not by itself create a refund right.

Client is responsible for the accuracy of prices, schedules, waivers, cancellation policies, and health statements on the site.

10. Timeline and launch

First full staging preview comes after the Deposit clears and Client has delivered the initial content listed in Section 9. There is no drop-dead launch date unless the Parties add one in writing. Launch happens only after Acceptance and clearance of the Balance.

11. Intellectual property

Until the Balance is paid, Contractor owns original design, layout, and code Contractor creates. Third-party tools stay with their vendors.

When the Balance clears, Contractor assigns to Client Contractor's rights in the custom design and custom code delivered for ritualfitnesshi.com, except Contractor's pre-existing tools and generic frameworks, which Client may keep using only to operate this Website. Repository access is then available on request.

A Section 5.2 refund means no assignment and no license.

Client keeps Client's brand, photos, and copy. Client permits Contractor to display and link to the publicly available Website, including screenshots and Client's name and branding as they appear on the Website, in Contractor's portfolio, social media, and promotional materials to showcase Contractor's work. This permission does not include private customer information or non-public Client content.

12. Warranties and liability

Contractor will perform the work in a professional manner. Contractor does not warrant rankings, booking volume, studio revenue, or uninterrupted uptime. Fitness results and class fill are Client's business.

To the maximum extent allowed by law, Contractor's total liability under this Agreement is limited to fees Client actually paid Contractor in the twelve (12) months before the claim. No lost-profits or consequential damages. These limits do not apply to Contractor's fraud or willful misconduct, or to Client's duty to pay.

13. Term

Starts when the Deposit clears. Build Phase ends on Acceptance and Launch, or earlier under Section 5.2. Hosting, domain, Repository, and edit allowances run through the included first year, then renew with each paid Annual Fee unless a Party gives at least fifteen (15) days' written notice before the anniversary. A 60-day fee-increase notice is also a window to non-renew.

Either Party may terminate for a material breach that is not cured within fifteen (15) days after written notice. After Launch, prepaid Annual Fee time is not refunded for a mid-year stop unless Contractor agrees in writing.

14. Law

Utah law governs. Venue is the state courts of Utah County, Utah, unless the Parties agree otherwise. Meet-and-confer in writing for ten (10) days before a lawsuit, except Contractor may sue to collect unpaid invoices without that step. Collection costs may be recovered on a successful unpaid-fee claim.

This page is the entire agreement on this project. Changes must be in writing. Electronic signatures and payment of the Deposit count as originals. Headings are convenience only.

15. Fees at a glance

Item	
Website + custom booking (Project Fee)	\$2,000.00
Year 1 hosting, domain, backend	Included
Deposit due on this page	\$1,000.00
Balance due at Acceptance, before launch	\$1,000.00
Annual hosting + domain after year 1	\$100.00 / year*
Minor edits after launch	3 / month, no rollover
Major / big edits after launch	1 / year included
Each additional major / big edit	\$100.00

* After year one, Contractor may raise the Annual Fee to keep the site functioning, with written notice at least 60 days before that payment is due.

Agree and pay the deposit

By checking the box and paying \$1,000.00 USD through the checkout on this page, Ashley Burnett agrees to this Agreement, confirms she is authorized to bind Ritual Fitness Hawaii, and adopts the payment as her electronic signature under the federal E-SIGN Act and Utah’s electronic-signature law.

I am Ashley Burnett. I have read this Agreement. I agree to its terms. Pay \$1,000.00 to start.

Typed name: _____

Email: _____

Complete deposit payment through the online agreement at lukaah.com/ritual-fitness-agreement.html. This downloaded copy is not proof of payment.